

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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MINERVA CANCEL,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER DAVID
HERNANDEZ, LIEUTENANT DARYL MELHADO,
DETECTIVE MIGUEL ESTEVEZ, DETECTIVE COTY
GREEN, DETECTIVE NELSON NIN, DETECTIVE
RSTISLAV KIPERVASER, AND LIEUTENANT
CARLOS FELIPE

Defendants.

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INDEX NO.:

FIRST AMENDED VERIFIED
COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, MINERVA CANCEL, by her attorneys, DeVerna Law, as and for her First Amended Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On June 16, 2017, at approximately 2:00PM, plaintiff Minerva Cancel was subjected to an unlawful stop, frisk, search, detention, false imprisonment, and false imprisonment while lawfully present inside of 815 East 152nd Street, Bronx, New York. Additionally, the defendant police officers subjected plaintiff to excessive force when they, used an unreasonable amount of force in effectuating the unlawful arrest of Plaintiff. Thereafter, the defendant police officers denied plaintiff the right to a fair trial by forwarding false information to the District Attorney's Office. Plaintiff was deprived of her constitutional rights when the individual defendants unlawfully stopped, questioned, frisked, searched, unlawfully arrested, used excessive force, and denied the plaintiff the right to a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution and in violation of New York State Law.

PARTIES

2. Plaintiff Minerva Cancel is a resident of Bronx County, State of New York.

3. Defendant Police Officer David Hernandez (hereafter, "Defendant Hernandez"), Shield 5191, is and was at all times relevant herein, an officer, employee, and agent

of the New York City Police Department, and as such was acting in the capacity of an agent, servant and employee of the City of New York. On the date of the incident, Defendant Hernandez was assigned to the Narcotics Bureau Bronx (hereafter, "NARCBBX"). David Hernandez is being sued in his individual and official capacities.

4. Defendant Lt. Carlos Felipe (hereafter, "Defendant Felipe"), Shield 5307, is and was at all times relevant herein, a officer, employee, and agent of the New York City Police Department, and as such was acting in the capacity of an agent, servant and employee of the City of New York. On the date of the incident, Defendant Felipe was assigned to the Narcotics Bureau Bronx (hereafter, "NARCBBX"). Defendant Felipe, is being sued in his individual and official capacities.

5. Defendant Daryl Melhado (hereafter, "Defendant Melhado"), Shield [unknown], is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department, and as such was acting in the capacity of an agent, servant and employee of the City of New York. On the date of the incident, Defendant Melhado was assigned to the Narcotics Bureau Bronx (hereafter, "NARCBBX"). Defendant Melhado is being sued in his individual and official capacities.

6. Defendant Coty Green (hereafter, "Defendant Green"), Shield 14012, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department, and as such was acting in the capacity of an agent, servant and employee of the City of New York. On the date of the incident, Defendant Green was assigned to the Narcotics Bureau Bronx (hereafter, "NARCBBX"). Defendant Green is being sued in his individual and official capacities.

7. Defendant Miguel Estevez (hereafter, "Defendant Estevez"), Shield 1304, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department, and as such was acting in the capacity of an agent, servant and employee of the City of New York. On the date of the incident, Defendant Estevez was assigned to the Narcotics Bureau Bronx (hereafter, "NARCBBX"). Defendant Estevez is being sued in his individual and official capacities.

8. Defendant Nelson Nin (hereafter, "Defendant Nin"), Shield 15130, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department, and as such was acting in the capacity of an agent, servant and employee of the City of New York. On the date of the incident, Defendant Nin was assigned to the Narcotics Bureau Bronx (hereafter, "NARCBBX"). Defendant Nin is being sued in his individual and official capacities.

9. Defendant Rostislav Kipervaser (hereafter, "Defendant Kipervaser"), Shield 8614, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department, and as such was acting in the capacity of an agent, servant and employee of the City of New York. On the date of the incident, Defendant Kipervaser was assigned to the Narcotics Bureau Bronx (hereafter, "NARCBBX"). Defendant Kipervaser is being sued in his individual and official capacities.

10. Defendants John and Jane Doe 1 through 4 were police officers, detectives, undercover police officers, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the real names and/or shield number of Defendants John and Jane Doe 1 through 4, but such information is believed to be in the possession of the defendants. At all times relevant herein, Defendants John and Jane Doe 1 through 4 were acting as agents, servants and employees of the City of New York and the NYPD. Defendants John and Jane Doe 1 through 4 are sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. At all times relevant hereto, City of New York, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

13. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

14. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

15. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

16. On June 16, 2017, at approximately 2:00 pm, Plaintiff was lawfully standing in the hallway of 815 East 152nd Street, Bronx, New York, in the vicinity of the front door of apartment 6A.

17. While Plaintiff, who was holding her mobile phone in her hand, was in the hallway standing in front of the door of apartment 6A, an individual inside of the apartment opened the door.

18. Suddenly, without any provocation or legal justification, Defendant Hernandez, Defendant Green, Defendant Estevez, Defendant Nin, Defendant Kipervaser, Defendant Felipe, and Defendant Melhado, acting in concert, rushed behind Plaintiff, grabbing and pushing her against a wall inside of the apartment.

19. Inside, Plaintiff, who had begun videotaping the scene with her mobile phone, had the phone confiscated from her hand by a Defendant Officer.

20. Defendants, acting in concert, then placed Ms. Cancel under arrest.

21. Ms. Cancel did not resist arrest.

22. The Defendants did not observe Ms. Cancel committing any crime or violating any law or local ordinance.

23. Defendants did not have probable cause or reasonable suspicion to detain or arrest Ms. Cancel.

24. Based on information and belief, a Defendant supervisor, was present on the scene and did not stop the unlawful arrest of Ms. Cancel.

25. Defendants searched Plaintiff's person without her authority or permission.

26. Defendant found no contraband or anything illegal on Ms. Cancel.

27. Defendants then placed Ms. Cancel into an NYPD vehicle where she remained for approximately four hours before finally arriving to the 40th Precinct.

28. During this four hour period Plaintiff was not allowed to use the bathroom.

29. At the 40th precinct, plaintiff was fingerprinted, photographed, and unlawfully detained in a holding cell. At the 40th precinct, Plaintiff was subjected to an unlawful strip search in that Plaintiff was forced to expose her breasts as well as lower her pants and underwear exposing the most intimate areas of the human body without reasonable suspicion or probable cause.

30. Plaintiff was later transported to Bronx Central Booking.

31. The Defendant, acting in concert, falsely stated to the Bronx County District Attorney's Office that plaintiff had committed a crime despite knowing that they lacked a legal and a factual basis to allege that plaintiff committed any crime.

32. After approximately 37 hours in police custody, plaintiff was arraigned in Bronx Criminal Court and was released.

33. Plaintiff later retrieved her previously confiscated mobile phone and saw the video tape she had taken of the Defendants had been erased.

34. Plaintiff was unlawfully charged with Criminal Possession of Marihuana in the Second, Third, Fourth, Fifth Degree, as well as Unlawful Sale, Possession or use of an Imitation Pistol, and Unlawful Possession of Marihuana

35. As a result of the injuries inflicted by the defendant police officers, Plaintiff lost out on an employment opportunity with Total Transportation, a union school bus company servicing the Department Of Education, when she was told that they would not be hiring her because of the instant arrest.

36. Plaintiff was forced to appear in Court several times before all charges against plaintiff were dismissed on or about October 15, 2018.

37. As a result of the injuries inflicted by the Defendants, Plaintiff was forced to seek mental health services.

38. Some of the Defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, seizure, false arrest, denial of fair trial, and excessive force used against plaintiff.

39. The unlawful stop, question, frisk, search, false arrest, false imprisonment, unlawful seizure, denial of fair trial, and excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Unlawful Stop and Search

42 U.S.C. § 1983 Against Individual Defendants

40. The above paragraphs are here incorporated by reference as though fully set forth.

41. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, subjected to denial of her due process rights and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

42. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

43. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.

44. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

45. The above paragraphs are here incorporated by reference as though fully set forth.

46. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

47. The acts and conduct of the defendants constitute false arrest and false imprisonment under U.S. Constitution. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement.

48. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.

49. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion, and the confinement was not otherwise privileged.

50. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

51. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

52. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, economic, emotional and psychological injuries.

53. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

Denial of Right to a Fair Trial Under
42 U.S.C. § 1983 Against Individual Defendants

54. The above paragraphs are here incorporated by reference as though fully set forth.

55. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

56. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

57. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

58. In withholding/creating false evidence against Plaintiff and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

59. As a result of the foregoing, Plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

60. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

61. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

Unlawful Strip Search

42 U.S.C. § 1983 Against Individual Defendants

62. The above paragraphs are here incorporated by reference as though fully set forth.

63. Plaintiff was searched by defendants without an individualized reasonable suspicion or probable cause to believe that plaintiff was concealing weapons or other contraband, based on a crime charged, the particular characteristics of the arrestee, and/or the circumstances of the arrest.

64. As a result of the aforementioned conduct of defendants, plaintiff Bernard Miller sustained injuries.

65. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

66. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

Failure to Intervene

42 U.S.C. § 1983 Against Individual Defendants

67. The above paragraphs are here incorporated by reference as though fully set forth.

68. Defendants had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

69. Defendants failed to intervene to prevent the unlawful conduct described herein.

70. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, she was put in fear of her safety, and she was humiliated and subject to other physical constraints.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CLAIM

Municipal Liability

42 U.S.C. § 1983 Against Individual Defendants

73. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

74. Plaintiff failed to properly train, screen, supervise or discipline employees and police officers, and of failed to inform the individual defendants' supervisors of their need to train, screen, supervise or discipline said defendants. The policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein.

75. Defendant, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

76. The aforementioned customs, policies, de-facto policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- a) arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and
- b) arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and
- c) fabricating evidence in connection with their prosecution in order to cover up police misconduct

77. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiff, were the direct and proximate cause of the constitutional violations suffered by the plaintiff as alleged herein, and were the moving force behind the constitutional violations suffered by the plaintiff as alleged herein.

78. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiff's constitutional rights.

79. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.

80. The acts complained of deprived the plaintiff of his right:

- a) Not to be deprived of liberty without due process of law;
- b) To be free from seizure and arrest not based upon probable cause; and
- c) Not to have summary punishment imposed upon him

JURY DEMAND

81. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Minerva Cancel demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

DATED: New York, New York
June 2, 2020



DEVERNA LAW
JOHN PAUL DEVERNA, ESQ.
Attorney for Plaintiff
305 Broadway, 14th Floor,
New York, New York 10007
(212) 321-0025

TO: DAVID HERNANDEZ, POLICE OFFICER, Shield 5191, 40th Precinct, 257 Alexander Ave, Bronx, NY 10454

CARLOS FELIPE, LIEUTENANT, Shield 5307, 40th Precinct, 257 Alexander Ave, Bronx, NY 10454

DARYL MELHADO, LIEUTENANT Shield [unknown], 40th Precinct, 257 Alexander Ave, Bronx, NY 10454

COTY GREEN, DETECTIVE Shield 14012, 40th Precinct, 257 Alexander Ave, Bronx, NY 10454

MIGUEL ESTEVEZ, DETECTIVE, Shield 1304, 40th Precinct, 257 Alexander Ave, Bronx, NY 10454

NELSON NIN, DETECTIVE, Shield 15130, 40th Precinct, 257 Alexander Ave, Bronx, NY 10454

ROSTISLAV KIPERVASER, DETECTIVE, Shield 8614, 40th Precinct, 257 Alexander Ave, Bronx, NY 10454

ATTORNEY'S VERIFICATION

John Paul DeVerna, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **DeVerna Law**, I have read the annexed **FIRST AMENDED VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
July 30, 2020



DEVERNA LAW
JOHN PAUL DEVERNA, ESQ.
Attorney for Plaintiff
111 John Street, Suite 1615
New York, NY 10038
(212) 321-0025